

**HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU**

SWP No. 788/2010 (O&M)
(Through Video Conferencing)

Sunil Singh and another

...Petitioner(s)

Through:-

v/s

State of J&K

....Respondent(s)

Through:-

Coram: HON'BLE MR. JUSTICE RAJESH BINDAL, JUDGE

ORDER

1. The petitioners who were 43 and 40 years of age respectively in the year 2010, when the present petition was filed, prayed that the selection process initiated for selection to the post of Physical Training Instruction vide advertisement dated 03.02.2009, be set aside. Direction was also sought to consider the case of the petitioners.

2. The matter was taken up on 08.04.2010, when the respondents were required to file objections. The selection/appointment to the post of Physical Training Instruction was directed to be subject to the outcome of the miscellaneous application. The petition was last listed in Court on 09.10.2012. Thereafter, the same was not pursued by the petitioners. They have not even impleaded any of the selected candidates or have taken any steps to pursue the present matter which is pending in this Court for the last ten years.

3. As the hearing of the cases now is being conducted through video conferencing, the required link for joining the video conferencing is being circulated amongst all the lawyers. Besides this, the Bench Secretary/Reader are forwarding the link to all the Advocates, who contact them one day prior to the listing of their cases. For which specific note is being published in the Cause List. But despite this, none of the counsel has shown any interest.

4. Though, this matter pertains to a service dispute of the employee of the Union Territory of Jammu and Kashmir. The reason as to why such types of cases pending in this Court are being taken up by this Court have been detailed out in order dated 30.06.2020, passed in *SWP No. 2374/2002, titled as Santosh Kumari vs. State of J&K and others.*

5. Keeping in view the aforesaid facts, nothing survives in the present petition, at this stage. The same is accordingly, dismissed as infructuous. However, with liberty to the petitioners to get the same revived within a period of three months from the date of this order, if the cause of action still survives.

(RAJESH BINDAL)
JUDGE

JAMMU
22.10.2020
SUNIL-I

Whether the order is speaking	:	Yes/No
Whether the order is reportable	:	Yes/No